

Chitra Rath vs Amresh Pattanaik Opposite Party on 17 December, 2021

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Bench: B.R. Sarangi

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IN THE HIGH COURT OF ORISSA AT CUTTACK

TRP(C) No.292 OF 2019

Chitra Rath		Petitioner
		Mr. B.P. Das, Advocate
	Vs.	
Amresh Pattanaik		Opposite party
		Mr. B.C. Ghadei, Advocate

CORAM:
DR. JUSTICE B.R. SARANGI

ORDER

17.12.2021 Order No. This matter is taken up through hybrid mode.

2. Heard Mr. B.P. Das, learned counsel for the petitioner and Mr. B.C. Ghadei, learned counsel for the opposite party.

3. The petitioner-wife has filed this application seeking transfer of C.P. No.156 of 2018 pending in the court of learned Judge, Family Court, Berhampur, Ganjam to the court of learned Civil Judge (Sr. Division), Parlakhemundi, Gajapati.

4. Mr. B.P. Das, learned counsel for the petitioner contended that earlier the opposite party-husband had filed C.P. No.96 of 2016 before the court of learned Judge, Family Court, Berhampur. It is contended that the petitioner-wife had approached this Court by filing TRP (C) No.156 of 2016 seeking transfer of C.P. No.96 of 2016 pending in the court of learned Judge, Family Court, Berhampur to the court of learned Civil Judge (Sr. Division), Parlakhemundi and this Court vide order dated 24.10.2016 passed order directing the learned Judge, Family Court, Berhampur to transmit the C.P. No.96 of 2016 to the court of learned Civil Judge (Sr. Division), Parlakhemundi. It

is further contended that after transfer, the said case was renumbered as MAT 32 of 2016 in the court of learned Civil Judge (Sr. Division), Paralakhemundi, but the opposite party, instead of participating in the proceeding, withdrew the said MAT 32 of 2016 on 09.04.2018 and filed a fresh C.P. No.156 of 2018 before the learned Judge, Family Court, Berhampur only to cause harassment to the petitioner. It is also contended that the petitioner has filed a case under Section 125 Cr.P.C. registered as MC No.11 of 2018 claiming for maintenance before the learned S.D.J.M., Paralakhemundi, which is still pending. It is further contended that in the event, C.P. No.156 of 2018 pending in the court of learned Judge, Family Court, Berhampur, Ganjam is transferred to the court of learned Civil Judge (Sr. Division), Paralakhemundi, Gajapati, the interest of justice would be best served so that the petitioner can participate in the proceeding.

5. Mr. B.C. Ghadei, learned counsel for the opposite party contended that since the petitioner caused harassment, the opposite party finding no other way out withdrew MAT 32 of 2016. Now the opposite party has filed C.P. No.156 of 2018 before the learned Judge, Family Court, Berhampur, Ganjam under Section 13 of the Hindu Marriage Act read with section 7 of the Family Court Act for decree of divorce, which is still pending for consideration. He further contended that now Family Court has been opened at Paralakhemundi and if C.P. No.156 of 2018 pending in the court of learned Judge, Family Court, Berhampur, Ganjam is transferred to the court of learned Judge, Family Court, Paralakhemundi, Gajapati, the opposite party has no objection. But, he stated that the petitioner may be directed to cooperate with the proceeding so that the proceeding can be concluded as early as possible.

6. Considering the contentions raised by learned counsel for the parties, it appears that the petitioner-wife is residing at Paralakhemundi, which is 167 KM away from Berhampur and it is not possible on her part to attend the proceeding at Berhampur. She has also filed MC No.11 of 2018 claiming for maintenance, which is pending in the court of learned S.D.J.M., Paralakhemundi. As such, she is apprehending threat of her life, if she goes to Berhampur for attending the proceeding. Keeping in view the judgment of the apex Court in Sumita Singh v. Kumar Sanjay, AIR 2002 SC 396 and in the interest of justice, equity and fair play, this Court disposes of this application directing learned Judge, Family Court, Berhampur to take necessary steps for transfer of C.P. No.156 of 2018 to the Court of learned Judge, Family Court, Paralakhemundi, so that both the cases shall be tried together and disposed of as expeditiously as possible preferably within a period of six months. Needless to say, the petitioner-wife shall cooperate with the proceeding and shall not ask for adjournment, unless it is so required, as would be considered by the learned Judge Family Court, Paralakhemundi.

Issue urgent certified copy as per rules.

Alok (DR. B.R. SARANGI, J.)